



DECISION

Complaint No. : POS/8027/2022/2023/HYD/08

Name and address of the complainant : Mr. Muhammad Munawar S/o Kaloo Khan,
R/o House No. 319-8, Block B-1,
Latifabad, Hyderabad.

Name of the Agency Complained against : Regional Director, Sindh Building Control Authority, Hyderabad.

Name & Designation of Investigating Officer : Syed Muhammad Sajjad Hyder, Regional Director,
Regional Office, Hyderabad.

Vetted by : Muhammad Naseer Jamali, Advisor-N

Subject : ALLEGED INACTION ON THE COMPLAINTS MADE AGAINST ILLEGAL CONSTRUCTION ON PLOT NO. 319, BLOCK-B-1, UNIT NO. 08, LATIFABAD, HYDERABAD

Complaint

Mr. Muhammad Munawar filed a complaint dated 20.12.2022 against Sindh Building Control Authority, Hyderabad stating therein that there is an illegal construction on plot No. 319, Block B-01, Unit No. 08, Latifabad, Hyderabad. He sent complaints to the agency but no action has been taken. Being aggrieved, he solicited intervention of this Institution.

Proceedings

2 The complaint was admitted for investigation u/s 10 (3) of the Establishment of the office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date) subject to submission of mandatory documents and by condoning the delay.

3 This office issued a notice vide letter dated 10.01.2023 to the Regional Director, Sindh Building Control Authority, Hyderabad for report, followed by reminders. In response, the Deputy Director, SBCA Taluka Latifabad informed vide letter dated 08.03.2023 that he visited the site and found unauthorized construction of G+2 storied building on plot No.319. The owner of the building has submitted a completion plan for G+2 in his office for regularization as per by-laws of Sindh Building Control Authority.

4. The complainant submitted a rejoinder vide letter dated 10.03.2023 wherein he informed that the said plot is property of their late father, Billu S/o Abdul Rehman, who left 06 sons & 04 daughters as legal heirs. He requested that the completion plan of the building may not be approved/regularized.

5. The opponent Mr. Muhammad Anwar appeared before Investigating Officer Hyderabad on 21.09.2023 stating that the house No. 319 is in the name of his father Mr. Kallu and legal heirs agreed to take portions in the joint owned house. He added that his brother, named Yameen has sold his portion to him.

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6. After protracted correspondence, the Deputy Director, SBCA, Taluka Latifabad informed vide letter dated 10.03.2025 that the Authority has taken legal action against unauthorized construction and a direct complaint has been filed against the owner through Direct complaint No. 65/2025 before Session Judge, Hyderabad.

Findings

7. On the intervention of this Institution, the agency has filed a direct complaint No. 65/2025 in the Court of Sessions Judge, Hyderabad and the matter is subjudice.

Decision

8. In view of the above and in exercise of powers vested in me under section 11 of Establishment of the office of the Ombudsman for the Province of Sindh Act, 1991 (amended upto date), the complaint is disposed of as subjudice in the court.

Given under my hand and seal of office.



Sd /-
(MUHAMMAD SOHAIL RAJPUT)
Sitara-e-Imtiaz. PAS
Ombudsman Sindh

Karachi, dated 19th February, 2026